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**PUBLIC NUISANCE
(SPECIAL REMEDY)
AND
RECAP**

Week 16
Lecture 32

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AIMS OF LECTURE

- Introduction to public nuisance.
- By the end of the lecture you will be able:
 - ❖ to identify when to consider a claim in public nuisance;
 - ❖ to understand the elements required to make a claim in public nuisance; and
 - ❖ distinguish the elements of public nuisance from private nuisance and *Rylands*.

PUBLIC NUISANCE - A CERTAIN KIND OF TORT

- Not private nuisance
- Not *Rylands v Fletcher*
- It is a crime
- The tort of public nuisance consists of:
 - ❖ An act or omission
 - ❖ Affecting rights of the public as a whole (infringement of public right causing common injury)
 - ❖ The claimant suffers special/particular damage (over and above the public at large)
 - ❖ Other features:
 - Provides a tortious remedy;
 - Recovery for personal harm and economic loss; and
 - The claimant need not have an interest in the land.

PUBLIC NUISANCE - A TORT AND A CRIME

*"A person is **guilty** of a public nuisance (also known as common nuisance), who (a) does an act not warranted by law, or (b) omits to discharge a legal duty, if the effect of the act or omission is to endanger the life, health, property, morals, or comfort of the **public**, or to obstruct the **public** in the exercise or enjoyment of **rights common** to all Her [His] Majesty's subjects."*



*R v Rimmington and Conjoined cases [2005] UKHL 63 [10] per Lord Bingham citing Archbold, *Criminal Pleading, Evidence and Practice* (2005 edn) paras 31-40*

Note sometimes cited as R v Rimmington; R v Goldstein

PUBLIC NUISANCE - WHO CAN TAKE ACTION?

1. An individual who has suffered special/particular damage over and above the public at large
2. Local Authorities have a power to prosecute or defend where they 'consider it expedient for the promotion or protection of the interests of the inhabitants of their area' (Local Government Act 1972, s 222)
3. Highways Authorities have a 'duty...to assert and protect the rights of the public to the use and enjoyment of any highway for which they are the highway authority' (Highways Act 1980, s 130(1)).
4. The Attorney-General as an agent of Government and on behalf of a public body (e.g. *Attorney General v PYA Quarries Ltd* [1957] 2 QB 169: '*brought by the Attorney-General on the relation of the Glamorgan County Council and the Pontardawe Rural District Council*'.)

PUBLIC NUISANCE - WHAT IS IT REALLY? 1/2

- An infringement of a public right /common injury – for example:
 - Obstruction of highway or pavement (people, vehicles, debris etc)
 - Water supply contamination (*AB and Others v South West Water Services Ltd* [1993] Q.B. 507)
- It is **not** a collection of private nuisances:
 - ‘It is not permissible to multiply separate instances of harm suffered by individual members of the public, however similar the harm or the conduct which produced it, and call them a common injury.’ Rimmington [2005] per Baroness Hale at [58]*

PUBLIC NUISANCE - WHAT IS IT REALLY? 2/2

- It is a balance:
 - Is the Defendant causing the “nuisance” a reasonable user?
 - Is the “nuisance” temporary?
 - See:
 - ❖ *‘The interruption was only very occasional and temporary. In so far as able-bodied pedestrians are concerned the obstruction was of the slightest. On balance it seems to me, that carried out with proper precautions, it is impossible to hold that this operation was improper and beyond the rights of an occupier of premises abutting on the highway.’ Trevett v Lee [1955] 1 W.L.R. 113, 121 per Evershed MR*
 - ❖ *‘...a public nuisance is a nuisance which is so widespread in its range or so indiscriminate in its effect that it would not be reasonable to expect one person to take proceedings on his own responsibility to put a stop to it, but that it should be taken on the responsibility of the community at large.’ Attorney General v PYA Quarries Ltd [1957], 191 per Lord Denning*

PUBLIC NUISANCE VS THE RIGHT TO PROTEST

- ❖ *DPP v Jones (Margaret) and Another Appellants* [1999] 2 AC 40
- ❖ *City of London Corp v Samede & Others* [2012] EWHC 34 (QB)
- ❖ *Three Counties Agricultural Society v Persons Unknown and others* [2022] EWHC 2708 (KB)



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PUBLIC NUISANCE VS PRIVATE NUISANCE 1/2

“Take the blocking up of a public highway or the non-repair of it. It may be a footpath very little used except by one or two householders. Nevertheless, the obstruction affects everyone indiscriminately who may wish to walk along it. Take next a landowner who collects pestilential rubbish near a village...on the edge of a residential neighbourhood. The householders nearest to it suffer the most, but everyone in the neighbourhood suffers too. In such cases the Attorney-General can take proceedings for injunction to restrain the nuisance: and when he does so he acts in defence of the public right...But when the nuisance is so concentrated that only two or three property owners are affected by it...then they ought to take proceedings on their own account to stop it and not expect the community to do it for them’.



‘Applying this test, I am clearly of opinion that the nuisance by stones, vibration and dust in this case was at the date of the writ so widespread in its range and so indiscriminate in its effect that it was a public nuisance.’

Attorney General v PYA Quarries Ltd

PUBLIC NUISANCE VS PRIVATE NUISANCE 2/2

Public Nuisance

- Unreasonable behaviour
- Can arise from same facts
- Criminal law to compensatory damages
- Member of the public, affected beyond damage suffered by public as a whole
- Recovery for personal or property harm
- (member of the public suffering special damage from

Private Nuisance

- Unreasonable behaviour
- Can arise from same facts
- Protection of landholding rights
- Proprietary interest required
- Proof of damage required (can be presumed)
- No recovery for personal harm
- (interference with use of enjoyment of private land)
- Individuals

PUBLIC NUISANCE - REMOTENESS, REMEDIES & DEFENCES

Remoteness

Reasonable foreseeability: *Overseas Tankship (U.K.) Ltd. Appellant v The Miller Steamship Co. Pty. and Another Respondent (Wagon Mound 2)* [1967] 1 AC 617, 643: *'If it is clear that the reasonable man would have realised or foreseen and prevented the risk, then it must follow that the appellant is liable in damages.'*

Compare: *Savage v Fairclough* [2000] Env. L.R. 183, 191: *'Would or should such a farmer [the hypothetical good farmer] have in the circumstances in which the defendants found themselves appreciated that to follow good farming practice would give rise to a real risk of contamination of the*

Remedies

- Damages:
 - *Economic*
 - *Property*
 - *Personal Injury*

N.B. No exemplary damages (to punish and deter). See *Rookes v Barnard* [1964] A.C. 1129 for a description of exemplary damages (to be continued in remedies lecture) and see *AB and Others v South West Water Services Ltd* [1993] Q.B. 507 confirming exclusion of exemplary damages for public nuisance.

Defences

- Contributory negligence (a defence?)
- Volenti non fit injuria (consent)

SOME MORE RECENT CASE LAW (OF INTEREST?)

- *Esso Petroleum Co Ltd v Persons Unknown* [2025] EWHC 1768 (KB)
- *Wolverhampton City Council v Persons Unknown* [2024] EWHC 2273 (KB)
- *Arla Foods Ltd v Persons Unknown* [2024] EWHC 1952 (Ch)
- *Valero Energy Ltd v Persons Unknown* [2024] EWHC 134 (KB)
- *Heathrow Airport Ltd v Persons Unknown* [2025] EWHC 2489 (KB)
- *Birmingham City Council v Afsar* [2019] EWHC 3217 (QB)

Note the apparent increased use of precautionary injunctions to prevent potential public nuisances in the first 5 examples. Consider what the public nuisance is likely to be in these instances that the injunction is aimed at preventing, and the kind of events that could give rise to an individual's tortious claim from the same.

PUBLIC NUISANCE - THE CALIFORNIAN CASE

Sriracha!

<https://www.bbc.co.uk/news/world-us-canada-26975852>



* In Dr Blakely's considered opinion.
Disclaimer: Other good/great/maybe even best hot sauces are available.

- Public nuisance case against Sriracha “the best” * hot sauce company
- Processes 5.4 million kg of chilli peppers a year
- 1,400 people filed suit due to nose bleeds, coughing fits, stinging eyes, and headaches
- Injunction issued but pepper grinding season was over...
- What might be an issue to recovering damages?

PUBLIC NUISANCE - QUESTIONS TO ASK

1. Act or omission?
2. Affecting rights of the public as a whole?
3. Any special damage?
4. Defences?
5. Remedies?

A PROPERTY/LAND-BASED TORT SUMMARY

Trespass to Land

Private Nuisance

Rylands

Public Nuisance (a special remedy)



How the rule in Rylands v Fletcher, Negligence, Private nuisance and Trespass to land relate to each other.^[1]

^[1] Table taken from V Bermingham and C Brennan, *Tort Law: Directions* (Oxford University Press, Oxford: 2008)

	Rylands v Fletcher	Private Nuisance	Negligence	Trespass to land
Does the interference have to be direct or does an indirect suffice?	Indirect	Indirect	Indirect	Direct
Does damage have to be demonstrated or is the tort actionable 'per se'?	Damage	Damage	Damage	Actionable per se
Is personal injury recoverable?	No	No	Yes	No
Who can sue?	Interest in land required	Interest in land required	Anyone to whom a duty of care is owed	Interest in land required

Keep in mind when dealing with land:

- Public nuisance
- OLAs

ELEMENTS OF THE TORTS - TRESPASS TO LAND

❖ Trespass is any act consisting of “directly entering upon land, or remaining upon land, or placing any object upon land in the possession of the claimant.”

❖ Elements of the tort;

1. What is Land?

▪ *Anchor Brewhouse* (1988)

2. Land that is in the immediate and exclusive possession of another

3. C has a right to exclude others

4. The interference is intentional and direct

▪ *League Against Cruel Sports* [1986]

Comparative features:

- Actionable per se
- Direct interference
- C must be in immediate and exclusive possession of the land



ELEMENTS OF THE TORTS - PRIVATE NUISANCE

1. Unlawful and indirect interference by D with C's use and enjoyment of land (amenity damage/property damage)
2. D is an unreasonable user (not a common and ordinary use)
3. Causation/Remoteness
4. Defences
5. Remedies



Comparative features:

- Damage/risk of damage required (*Network Rail v Williams*) – property and amenity damage only
- C must have a proprietary interest in the land
- Continuous rather than 'one-off'

ELEMENTS OF THE TORTS - *RYLANDS*

1. D must be occupier of the land;
2. D must bring/collect/keep an exceptionally dangerous or mischievous thing on the land;
3. D must have or should have recognised an exceptionally high risk of danger or mischief in the event of an escape, no matter how small/unlikely the risk (foreseeability of harm);
4. D's use of land must be non-
5. the thing does escape onto another property;
6. escape must cause legally recognised damage (property or amenity);
7. limited defences are available.

Comparative features:

- Proof of harm required (personal injury not recoverable post-*Transco*)
- C needs proprietary interest (post-*Transco*)
- Foreseeability requirement (post-*Cambridge Water*)
- One-off rather than continuous

ELEMENTS OF THE TORTS - PUBLIC NUISANCE

1. Act or omission?
2. Affecting rights of the public as a whole?
3. Any special damage?
4. Defences?
5. Remedies?

Comparative features:

- It is a crime
- Common infringement, but special harm – over and above the public at large
- Can recover for personal injury and economic losses
- No proprietary interest needed



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**PUBLIC NUISANCE
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END OF LECTURE

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